

CODE

Education support

Draft for member review | 29 September 2026

Plain language summary

One budget line, a written decision in 30 days, the same rate for every member in the same row, and one appeal. An application should not turn on which councillor is asked, or on whether the member lives on reserve.

Working draft. Rates are proposals. Not adopted law. Laws cited were read on the Justice Canada consolidations current to 21 September 2026, the Charter and Constitution Act, 1982 consolidation, and the Treaty No. 8 text published by Crown-Indigenous Relations and Northern Affairs Canada. This draft is not a legal opinion.

Part 1. Purpose

1.1 This instrument sets one education budget and a written decision for every applicant. Support does not depend on which councillor is asked.

Part 2. The amount

2.1 Council must put one education amount in the annual budget. The finance officer must post the schedule of rates at least 14 days before the budget vote. The schedule in this draft, which electors may change before adoption, is:

Item	Amount	Rule
Tuition and mandatory fees	The invoice, if the budget line can pay it	Same rule for every member in that program
Books and required materials	Up to \$800 in a school year	Receipts filed within 30 days, or the next payment waits
Living support, school more than 80 km from the member's home	The monthly rate posted in the budget	One rate for every member in this row
Living support, school 80 km or closer	The monthly rate posted in the budget	One rate for every member in this row

2.2 Residence on or off reserve does not change the row. A decision that uses residence as the reason, where the schedule does not, is void. The education officer must issue a corrected decision within 14 days.

Part 3. Decisions

3.1 An application is filed with the education officer. The officer must acknowledge it within 7 days and must decide in writing within 30 days of a complete application. The decision must say the amount, the months, and the section relied on. A refusal must give the reason and the appeal deadline.

3.2 If there is no decision on day 30, the application is deemed refused on day 31. The applicant may appeal on day 32.

3.3 The applicant may appeal to the appeal body within 14 days. The appeal body must decide within 21 days. Its decision replaces the officer's decision.

3.4 An application by the chief, a councillor, an employee in the education office, or their immediate family is decided by the appeal body, not by council or the education officer. The body must decide within 30 days. A decision made by council on that file is void.

3.5 The education officer must post, every quarter within 30 days of quarter end, the number of applications, the number approved, the number refused, and the total paid. Names are not posted.

Part 4. Amendment

4.1 Council must not amend this education instrument by resolution. A resolution that purports to amend it is void on the day it is signed. The appeal body must post that fact within 14 days.

4.2 An amendment passes only if a majority of the votes cast are yes and at least 25 percent of the electors cast a ballot.

4.3 The electoral officer must post the full proposed text at least 30 days before the vote. A vote held on shorter notice is void.

4.4 An amendment that removes or weakens a spending limit, a signature rule, a ban on voting on one's own pay, honorarium, travel, or contract, publication of financial statements or the remuneration schedule, a term limit, the fixed election date, the conflict register, a recusal rule, a right-to-information deadline, the whistleblower channel to the appeal body, the independence of the appeal body, the off-reserve councillor position, the rule that one person must not commit more than \$10,000, the open invitation for a contract over \$25,000, the public mandate and the quarterly report, the removal petition, or the rule that members, not council alone, amend a law does not pass under 4.2. It passes only if a majority of all electors vote yes. If that count is not met, the amendment is void.

4.5 The electoral officer must post the count within 3 days.

Part 5. Review and coming into force

5.1 The appeal body must review this education instrument every 4 years, counted from the day it comes into force, and must post a written report within 60 days after that anniversary. The report does not amend this education instrument.

5.2 Within 90 days of that report, council must either put a recommended amendment to the electors under Part 4, or post written reasons for not doing so. If council does neither, the appeal body must post that omission on day 91, and council honoraria stop on day 91 until one of those two things is done.

5.3 this education instrument comes into force on the day after the electors approve it under Part 4. Until that day it is a draft. It does not repeal an election code, by-law, or policy already in force.

5.4 Where a law already in force sets its own replacement rule, this education instrument replaces that law only if the electors also meet that rule. A lawyer should compare the two texts before the vote.

5.5 The records officer must keep the adopted text posted for at least 10 years. If it is not posted by day 10 after the vote, the records officer must post a written reason that day, and the appeal body must appoint a replacement records officer within a further 10 days.

This is not a legal opinion. A lawyer, or a person whose work is First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or another federal law is of no effect to the extent of the conflict. Police and Crown prosecution of a band by-law is uneven. The Minister's steps under the First Nations Financial Transparency Act, section 13, are discretionary. The consequences in this instrument are internal for that reason.